

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/24/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
2	Luk vs. Johnson	The Court staff will provide counsel with the rulings on the objections that were filed with the Court. Due to the extremely voluminous filings and evidence, including counsel filing until 6/23/2026 at 2:25 PM on this matter, the Court's extensive calendar, and other voluminous filings, the Court will be continuing the motion for summary judgment. The Court will not accept any further filing on the motion.
3	30-2026-01556931 Northwood Place Apartments LLC vs. Ostrowski	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 42). A judge properly grants summary judgment when there are no triable issues of material facts and judgment is warranted as a matter of law. (California Code of Civil Procedure § 437c(c); <i>Bailey v. San Francisco District Attorney's Office</i> (2024) 16 Cal. 5th 611, 620.) The Plaintiff has the burden of establishing an unlawful detainer action for non-payment of rent pursuant to CCP 1161(2). Here, the Plaintiff established

		that it properly served a 3-day Notice to Pay or Vacate in 30 Days pursuant to the CARES Act on the Defendant on 2/12/2026, and the Notice contained all the required elements under CCP § 1161(2). The burden then shifts to the Defendants to establish any affirmative defenses to the unlawful detainer action. On May 29, 2026, the Plaintiff filed a Motion to Deem Request for Admission, Set One, Admitted (ROA 35). On June 10, 2026 the Court granted the Plaintiff's Motion and ordered "the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's Request for Admission Set One be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant Lana Ostrowski on May 21, 2026, be deemed admitted." (ROA 38) There are no affirmative defenses that the Defendant could establish under the law. Therefore, the Plaintiff has established there are no triable issues of material facts and judgment for the Plaintiff is warranted in this matter. The Court awards possession of the property located at 632 Hayes Street, Irvine, CA 92620, County of Orange. The lease is forfeited. Judgment applies to all unknown occupants, subtenants, or claimants. The Court awards monetary damages to the Plaintiff as follows: Past Due Rent: \$844.62 Holdover Damages: \$5,733.40 (109 days at \$52.60 a day) Attorney's Fees & Cost: \$837.90 Total Judgment: \$9,415.92 The Plaintiff is ordered to file a judgment form reflective of the Court's orders and serve notice of entry of judgment on the Defendants.
4	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Defendant's Motion for Judgment on the Pleadings (ROA 75) and Plaintiff's Opposition (ROA 121). The Court DENIES the Defendant's Motion for Judgment on the Pleadings. The Court notes that the pretrial hearing is set for June 26, 2026, and the jury trial is set for June 29, 2026. There is also a Motion for Summary Judgment (ROA 118) filed by the Defendant on 6/22/2026, which is calendared for July 10, 2026. Counsel are to advise the Court whether they are prepared to proceed with the pretrial and jury trial dates, or whether they request that the matter be set after the motion for summary judgment.
5	30-2026-01565351 Regency Palms, LP vs. Riccobono	The Court has read and considered Plaintiff's Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. (1), Admitted and Conclusively Established (ROA 59). The Court takes Judicial Notice of the 6/12/2026 Minute Order (ROA 56). As reflected in ROA 56, Plaintiff previously filed a Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. 1, Admitted and Conclusively Established (ROA 30). That motion was set for hearing on June 12, 2026, at 8:30 a.m. Although Defendant appeared at the

		hearing, Plaintiff's counsel failed to appear. Consequently, the Court took the motion off calendar due to the moving party's nonappearance. On June 15, 2026, Plaintiff filed the present motion (ROA 59), which is substantially identical to the motion previously filed as ROA 30. The motion references Exhibit 1 and Exhibit 2, stating that they are "attached and incorporated hereto." However, no exhibits were attached to or filed with ROA 59. Further, California Rules of Court, rule 3.1113(a) and (b), require that a memorandum of points and authorities accompany any motion. The rule expressly provides that the Court may construe the absence of a memorandum or supporting evidentiary documents as an admission that the motion lacks merit and may deny the motion on that basis. Accordingly, because Plaintiff failed to file the exhibits referenced in the motion as required by the California Rules of Court, Plaintiff has not provided an adequate factual basis for the relief requested. The motion is therefore DENIED.
6	Ocean Breeze Villas vs. Florida	On 6/12/2026, the Motion to Vacate was continued at the request of specially appearing counsel for the Plaintiff, Kevin Mello, to 6/24/2026. Defendant filed Proof of Service by Mail (ROA 55) that Plaintiff was mailed notice of the Motion to Vacate Renewal of Judgment on 6/1/2026. The Court has read and considered the Defendant's Motion to Vacate Renewal of Judgment (ROA 51) and Declaration in Support of the Motion (ROA 52). The Court takes Judicial Notice of the Application for and Renewal of Judgment (ROA 35), Proof of Service by Mail (ROA 41), Memorandum of Costs After Judgment (ROA 43), Writ of Execution (ROA 44), Writ of Possession Returned – Wholly Satisfied (ROA 22), Writ (07/11/2018 Issued) (ROA 32), and Declaration of Address Verification (ROA 47). California Code of Civil Procedure § 683.170(a), states "The renewal of a judgment pursuant to this article may be vacated on any ground that would be a defense to an action on the judgment, including the ground that the amount of the renewed judgment as entered pursuant to this article is incorrect, and shall be vacated if the application for renewal was filed within five years from the time the judgment was previously renewed under this article." California Code of Civil Procedure §683.160(a) states, "The judgment creditor shall serve a notice of renewal of the judgment on the judgment debtor. Service shall be made personally or by first-class mail and proof of service shall be filed with the court clerk. The notice shall be in a form prescribed by the Judicial Council and shall inform the judgment debtor that the judgment debtor has 60 days within which to make a motion to vacate or modify the renewal." The original address of the premises subject to the unlawful detainer proceedings was 6401 Warner Ave. #525, Huntington Beach, CA 92647, based on the Writ of Possession (ROA 22), which was filed on 9/30/2015.

		The Writ that was issued in July of 2018 as to the Defendants at an address of 7701 Warner Ave. Apt. L174, Huntington Beach, CA 92647 (ROA 32). The Proof of Service by Mail (ROA 41) serves both Defendants at 6200 Edinger Ave., Apt. 832, Huntington Beach, CA 92647 on 1/7/2026 with the “Notice of Renewal of Judgment, Application for Renewal of Judgment”, although the Application for and Renewal of Judgment (ROA 35) was filed with the Court on 10/7/2025. ROA 42 shows two different addresses for service, including 7281 La Mancha Cir, Apt. C, Huntington Beach, CA 92647, signed 2/6/2026, less than a month from the Proof of Service by Mail (ROA 41). Defendant Anna Grabowska provided documentation that she has resided at the same location, 7281 La Mancha Circle Apt. C, Huntington Beach, CA 92648, since June 2020. Plaintiff failed to timely serve on the Defendant the Application for Renewal of Judgment at the correct address for the Defendant. Additionally, there is no evidence lodged with the Court showing that the Plaintiff complied with the requirement to notify the judgment debtor that the judgment debtor has 60 days within which to move to vacate or modify the renewal. The Court VACATES the Renewal of Judgment and QUASHES the Writ of Execution issued on 4/22/2026. The Court Clerk is to notify the Orange County Sheriff’s Department that the Writ of Execution issued on 4/22/2026 is QUASHED. The Court Clerk is to provide notice of the Court’s ruling.
7	Flight Phase I Owner, LLC vs. Incipio, LLC	The Court has read and considered: Defendant’s Motion to Quash Service of Process Under CCP §418.10 or Alternatively, to Set Aside Default Judgment (ROA 221), Request for Judicial Notice (ROA 234), Declarations in Support (ROA 222 & 223), Appendix of Authorities (ROA 230 & 232), Plaintiff’s Opposition (ROA 240), Declaration in Support (ROA 242), Request for Judicial Notice (ROA 249), Reply Memorandum in Support of Motion to Quash Service of Process Under CCP §418.10 or Alternatively, to Set Aside Default Judgment (ROA 251), and Objection (ROA 253). Ruling on the Objections will be provided to Counsel via Zoom Chat. Request for Judicial Notice ROA 249 is GRANTED. Request for Judicial Notice ROA 234 is GRANTED. California Code of Civil Procedure section 916 operates to stay proceedings in the trial court upon the filing of an appeal from a judgment or order embraced by, or affected by, the appeal. While section 916 generally divests the trial court of jurisdiction over matters involved in the appeal, a limited exception permits the trial court to vacate a judgment that is void on its face. Upon review of the evidence and arguments presented, the Court finds that Defendant has failed to establish that the judgment is void on its face. The record reflects that Defendant made a general appearance in this action by filing an Answer to the original Complaint. The record further demonstrates that Defendant’s counsel of record was served with subsequent notices, pleadings, and filings throughout the litigation, including the Amended

Complaint filed after possession of the subject property was no longer at issue.

Because the Court's jurisdiction is limited under Code of Civil Procedure section 916 during the pendency of the appeal, the Court confines its analysis to whether the judgment is void on its face. Having determined that it is not, the Court declines to address Defendant's remaining grounds for relief from the default judgment. Those issues are presently before the Court of Appeal in Case No. G066443 and are therefore beyond the scope of this Court's limited jurisdiction while the appeal remains pending.

Accordingly, the Motion is DENIED.

Plaintiff's Counsel is to provide notice of the Court's ruling.